**UNITED STATES DISTRICT COURT**
**FOR THE WESTERN DISTRICT OF NORTH CAROLINA**
**STATESVILLE DIVISION**
**Civil Action No. 5:26-CV-6**

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| JEFFREY NOBLE,<br><br>Plaintiff,<br><br>v.<br><br>TOWN OF MOORESVILLE, NORTH CAROLINA; CHRISTOPHER QUINN, in his official and individual capacities; TRACEY JEROME, in her official capacity; CHRIS CARNEY, in his individual capacity,<br><br>Defendants. | **MEMORANDUM OF LAW IN SUPPORT OF DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S COMPLAINT**<br>Fed. R. Civ. P. 12(b)(1), 12(b)(2), 12(b)(6) |

NOW COME Defendants Town of Mooresville, Christopher Quinn in his official and individual capacities, Tracey Jerome in her official capacity, and Chris Carney in his individual capacity, (collectively "Defendants"), by and through undersigned counsel, and pursuant to Local Rule 7.1, Fed. R. Civ. P. 12(b)(1), 12(b)(2), and 12(b)(6), and file this Memorandum of Law in Support of Defendants' Motion to Dismiss Plaintiff's Complaint.

## STATEMENT OF THE CASE

Plaintiff commenced this suit on January 12, 2025, and brings claims against Defendants under 42 U.S.C. § 1983 for (1) First Amendment Retaliation; (2) Fourteenth Amendment Due Process; (3) a Monell claim; (4) Civil Conspiracy to Violate Civil Rights; (5) and brings a claim for Wrongful Discharge in Violation of North Carolina Public Policy. See generally, (DE 1). Defendants now timely move to dismiss Plaintiff's Complaint, in its entirety.

## STATEMENT OF RELEVANT FACTS

### I. Plaintiff's Employment with The Town

Plaintiff alleges he was employed by the Town in its Innovation and Technology Department, and contends his duties included "administration of Town Hall access-control systems, badge credentials, surveillance systems, and related security infrastructure." (DE 1, ¶¶ 8–9, 13). Per the Complaint, "Plaintiff routinely reviewed door-access logs, badge activity, and surveillance footage to identify unauthorized access, security risks, and policy violations." Id. at ¶ 14. He represents that on October 7, 2024, "the Town created IT Ticket #36967 requesting modifications to door-access permissions," and while he was working on this ticket on October 15, 2024, he "reviewed badge-access logs and identified irregular after-hours entries associated with the Mayor's credentials." Id. at ¶¶ 15-16.

Plaintiff claims he "reviewed Town Hall surveillance footage corresponding to the access-log activity" which purportedly depicts the Mayor "entering Town Hall after midnight accompanied by an adult woman," whom Plaintiff represents he later learned was named Jamie Gatton, "a communications consultant" Plaintiff claims was "being paid by or contracting with the Town at that the time." Id. at ¶¶ 19, 24.

Plaintiff contends that he "did not disseminate the video publicly and did not provide the video to any media outlet," but did report "his findings internally, beginning on or about October 15, 2024, to his supervisors within the IT Department." Id. at ¶¶ 25-26.

### II. Events Subsequent to October 15, 2024

Plaintiff alleges that following his report, the Mayor took a leave of absence, and "Town leadership restricted access to the surveillance footage and limited who within the Town and

within the Police Department could be briefed on its contents." Id. at ¶¶ 29-30. Plaintiff alleges he was accused of "leaking information to the media," and was placed on administrative leave, but does not identify who made that decision, or when. Id. at ¶¶ 36-37.

On June 17, 2025, Plaintiff participated in an "administrative interview" conducted by US ISS investigators, a "third-party," and attended by a Mooresville Police Department Detective and "police K-9 unit." Id. at ¶¶ 38-39. "On or about July 3, 2025, Plaintiff was informed by Defendant Quinn that termination of his employment was being recommended." Id. at ¶ 46. Plaintiff contends that the circumstances of his separation constitute a constructive discharge. Id. at ¶ 48.

## STANDARD OF REVIEW

Subject matter jurisdiction is a threshold issue that relates to the court's power to hear a case and must be decided before a determination on the merits of the case. Constantine v. Rectors & Visitors of George Mason Univ., 411 F.3d 474, 479-80 (4th Cir. 2005). Generally, a motion under Rule 12(b)(1) raises the question of "whether [the plaintiff] has a right to be in the district court at all and whether the court has the power to hear and dispose of [the] claim." Holloway v. Pagan River Dockside Seafood, Inc., 669 F.3d 448, 452 (4th Cir. 2012). In ruling on a motion made under Rule 12(b)(1), the Court may "regard the pleadings as mere evidence on the issue and may consider evidence outside the pleadings without converting the proceeding to one for summary judgment." Evans v. B.F. Perkins Co., 166 F.3d 642, 647 (4th Cir. 1999) (quotation omitted).

To survive a 12(b)(6) motion to dismiss for failure to state a claim upon which relief can be granted, Plaintiff's "complaint must contain sufficient factual matter, accepted as true, to

'state a claim to relief that is plausible on its face.'" Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009) (quoting Bell Atlantic Corp. v. Twombly, 550 U.S. 544, 570 (2007)). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." Id. (citing Twombly, 550 U.S. at 556).

The Court need not accept legal conclusions as true, and "[t]hreadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." Doe v. U.S., 381 F. Supp. 3d 573, 590 (M.D.N.C. 2019) (quoting Iqbal, 556 U.S. at 678). A court cannot "accept as true allegations that contradict matters properly subject to judicial notice or by exhibit." Veney v. Wyche, 293 F.3d 726, 730 (4th Cir. 2002) (citations and internal quotations omitted).

## ARGUMENT

### I. Plaintiff's Duplicative Official Capacity Claims Should Be Dismissed.

When a governmental employee is sued in his or her official capacity, the Fourth Circuit has held the claim is against the governmental office the employee holds, rather than the particular individual occupying the office. Brissett v. Paul, 141 F.3d 1157 (4th Cir. 1998) (upholding dismissal of claims against defendants in their official capacities as Chiefs of Police, where local government that employed them was named as a party); see also Kentucky v. Graham, 473 U.S. 159, 165-167 (1985) (noting that official capacity suits "generally represent only another way of pleading an action against an entity of which an officer is an agent.").

Here, Plaintiff has simultaneously alleged official capacity claims against Chris Quinn and Tracey Jerome, and claims against their employer, the Town. All Plaintiff's claims against

Mr. Quinn and Ms. Jerome in their official capacities are redundant, unnecessary, and should be dismissed with prejudice.

**II. Plaintiff's Individual Capacity Claims Against Mayor Carney and Chris Quinn Should Be Dismissed Because Plaintiff Fails to Meet the Pleading Requirements of Rule 8.**

A proper pleading under the Federal Rules of Civil Procedure must contain a "short and plain statement of the claim showing that the pleader is entitled to relief." Fed. R. Civ. P. 8(a)(2). Merely offering "labels and conclusions or a formulaic recitation of the elements of a cause of action will not do." Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009) (citing Bell Atl. Corp. v. Twombly, 550 U.S. 544, 555 (2007)). Nor are "naked assertions devoid of further factual enhancement" sufficient. Id.

Plaintiff's Complaint falls woefully short of this standard. Throughout, Plaintiff makes conclusory statements without any factual enhancement. To make matters worse, most, if not all, of Plaintiff's claims are not directed at any specific Defendant. Due to this failure, Defendants cannot identify what Plaintiff claims each Defendant allegedly did, or decipher why that Defendant's alleged conduct constitutes a violation of law.

Despite naming the Mayor in his individual capacity, Plaintiff offers no factual allegations directed at any action the Mayor took towards Plaintiff with respect to Plaintiff's employment with the Town. Plaintiff's only specific references to the Mayor concern his depiction in surveillance footage. He does not plead that the Mayor was involved in placing Plaintiff on administrative leave, the administrative interview, or his so-called constructive discharge.

The same is equally true of Plaintiff's threadbare allegations against Chris Quinn. Plaintiff's only specific allegation addressed to Mr. Quinn is that "[o]n or about July 3, 2025,

Plaintiff was informed by Defendant Quinn that termination of his employment was being recommended." Id. at ¶ 36. Plaintiff does not even plead that Mr. Quinn recommended that Plaintiff's employment be terminated.

Because Plaintiff fails to meet the pleading standards set by the Federal Rules, his individual capacity claims against Mayor Carney and Mr. Quinn must be dismissed.

**III. Plaintiff's Fourteenth Amendment Claim Fails.**

To establish a protected liberty interest and proceed on his Fourteenth Amendment claim, Plaintiff must plead facts sufficient to show the charges against him "(1) placed a stigma on his reputation; (2) were made public by the employer; (3) were made in conjunction with his termination or demotion; and (4) were false." Sciolino v. City of Newport News, Va., 480 F.3d 642, 646 (4th Cir. 2007). In such instances, a hearing is necessary "to provide the person an opportunity to clear [her] name." Board of Regents v. Roth, 408 U.S. 564, 573 n.12 (1972).

But the Due Process Clause "'is not a guarantee against incorrect or ill-advised personnel decisions.'" Sciolino, 480 F.3d at 649 (quoting Bishop v. Wood, 426 U.S. 341, 350 (1976)). Here, the only protected liberty interest Plaintiff asserts is that "Defendants made and disseminated false, misleading, and stigmatizing accusations against Plaintiff, including allegations that Plaintiff leaked confidential information and engaged in misconduct." (DE 1, ¶ 62). But Plaintiff provides no support whatsoever establishing the required second element of this claim, i.e., that any Defendant publicly accused him of leaking confidential information and engaging in misconduct.

**IV. Plaintiff Was Not Retaliated Against In Violation of The First Amendment.**

A public employee suing under 42 U.S.C. § 1983 for First Amendment retaliation must show that: (1) they spoke as a citizen about a public concern and not a personal interest; (2) they had an interest in speaking out that outweighed the government's interest in providing public services; and (3) their speech was a substantial factor in the adverse employment action. Penley v. McDowell Cnty. Bd. of Educ., 876 F.3d 646, 654 (4th Cir. 2017) (quoting McVey v. Stacy, 157 F.3d 271, 277–78 (4th Cir. 1998)).

Here, Plaintiff cannot show that the alleged speech was made outside of his official duties as a member of the Town's IT Department. The Supreme Court has held the "the First Amendment does not protect statements that public employees make 'pursuant to their official duties.'" Crouse v. Town of Moncks Corner, 848 F.3d 576, 587 (4th Cir. 2017), citing Garcetti v. Ceballos, 547 U.S. 410 (2006). "The critical question under Garcetti is whether the speech at issue is itself ordinarily within the scope of an employee's duties, not whether it merely concerns those duties." Lane v. Franks, 134 S. Ct. 2369, 2379 (2014).

## CONCLUSION

WHEREFORE, Defendants respectfully request that their Motion to Dismiss be GRANTED and that each of Plaintiff's claims be DISMISSED WITH PREJUDICE pursuant to Fed. R. Civ. P. 12(b)(1), 12(b)(2), and 12(b)(6).

This the 13th day of March, 2026.

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## CERTIFICATION REGARDING USE OF ARTIFICIAL INTELLIGENCE

Pursuant to the June 18, 2024 Standing Order of this Court *In Re: Use of Artificial Intelligence*, 3:24-mc-104, counsel, by signing above, submits the following certification regarding Defendants' Memorandum of Law in Support of Defendants' Motion to Dismiss.

1. No artificial intelligence was employed in doing the research for the preparation of this Memorandum, with the exception of such artificial intelligence embedded in the standard on-line legal research sources Westlaw, Lexis, FastCase, and Bloomberg, as well as Google and Google Scholar;

2. Every statement and every citation to an authority contained in this Memorandum has been checked by the undersigned as to the accuracy of the proposition for which it is offered, and the citation to authority provided.

This the 13th day of March, 2026.

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**CERTIFICATE OF SERVICE**

This is to certify that the undersigned has this day electronically filed the foregoing MEMORANDUM OF LAW IN SUPPORT OF DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S COMPLAINT with the Clerk of the Court using the CM/ECF system which will send notification of such filing to the following counsel of record:

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This the 13th day of March, 2026.

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